

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE BILL 2929

By: Norwood and Tedford of the
House

5
6 and

7 Haste of the Senate

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9
10 AS INTRODUCED

11 An Act relating to insurance; amending 36 O.S. 2021,
12 Section 3639.1, which relates to cancellation,
13 refusal to renew or increase premium of homeowner's
14 insurance policy; prohibiting certain terminations;
15 prohibiting certain actions by insurers for claims
16 occurring more than five years before policy
17 effective date or renewal; directing that insurers
18 shall not refuse underwriting risk for homeowner's
19 insurance in certain cases; prohibiting certain
20 actions by insurers for certain claims; providing
21 exceptions; directing that insurers may only consider
22 at-fault motor vehicle claims history in provided
23 time frame; and providing an effective date.

24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

25 SECTION 1. AMENDATORY 36 O.S. 2021, Section 3639.1, is
26 amended to read as follows:

27 Section 3639.1. A. No insurer shall cancel, refuse to renew or
28 otherwise terminate, or increase the premium of a homeowner's

1 insurance policy or any other personal residential insurance
2 coverage, which has been in effect more than forty-five (45) days,
3 solely because the insured filed a first claim against the policy.

4 B. No insurer shall cancel, refuse to renew or otherwise
5 terminate, or increase the premium of a homeowner's insurance policy
6 or any other personal residential insurance coverage, including, but
7 not limited to, flood insurance, because of a claim that occurred
8 more than five (5) years before the effective date of the policy or
9 renewal. No insurer shall refuse to underwrite risk for a
10 homeowner's insurance policy or any other personal residential
11 insurance coverage, including, but not limited to, flood insurance,
12 because of a claim that occurred more than five (5) years before the
13 date of application.

14 C. No insurer shall cancel, refuse to renew or otherwise
15 terminate, or increase the premium of a homeowner's insurance policy
16 or any other personal residential insurance coverage, including, but
17 not limited to, flood insurance, based on the claims history of an
18 insured for weather-related claims, unless there were three or more
19 weather-related claims within the preceding three-year period. This
20 subsection shall not apply to claims for weather-related events for
21 which the insurer provided written notice to the insured for
22 reasonable or customary repairs or replacement specific to the
23 insured's premises or dwelling which the insured failed to make and

1 which, if made, would have prevented the loss for which a claim was
2 made.

3 D. The provisions of this section shall not be construed to
4 prevent the cancellation, nonrenewal or increase in premium of a
5 homeowner's insurance policy for the following reasons:

6 1. Nonpayment of premium;

7 2. Discovery of fraud or material misrepresentation in the
8 procurement of the insurance or with respect to any claims submitted
9 thereunder;

10 3. Discovery of willful or reckless acts or omissions on the
11 part of the named insured which increase any hazard insured against;

12 4. A change in the risk which substantially increases any
13 hazard insured against after insurance coverage has been issued or
14 renewed;

15 5. Violation of any local fire, health, safety, building, or
16 construction regulation or ordinance with respect to any insured
17 property or the occupancy thereof which substantially increases any
18 hazard insured against;

19 6. A determination by the Insurance Commissioner that the
20 continuation of the policy would place the insurer in violation of
21 the insurance laws of this state; or

22 7. Conviction of the named insured of a crime having as one of
23 its necessary elements an act increasing any hazard insured against.
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1 ~~B.~~ E. An insurer shall give to the named insured at the mailing
2 address shown on a homeowner's policy, a written renewal notice that
3 shall include new premium, new deductible, new limits or coverage at
4 least thirty (30) days prior to the expiration date of the policy.
5 If the insurer fails to provide such notice, the premium,
6 deductible, limits and coverage provided to the named insurer prior
7 to the change shall remain in effect until notice is given or until
8 the effective date of replacement coverage obtained by the named
9 insured, whichever occurs first. If notice is given by mail, the
10 notice shall be deemed to have been given on the day the notice is
11 mailed. If the insured elects not to renew, any earned premium for
12 the period of extension of the terminated policy shall be calculated
13 pro rata at the lower of the current or previous year's rate. If
14 the insured accepts the renewal, the premium increase, if any, and
15 other changes shall be effective the day following the prior
16 policy's expiration or anniversary date.

17 ~~C.~~ F. In the event an insured cancels a homeowner's insurance
18 policy or any other personal residential insurance coverage, written
19 notice shall be provided by the insured to the insurer that provided
20 the coverage being canceled. The notice of cancellation shall
21 provide the date of the cancellation of the policy and the insurer
22 shall reimburse the insured for any premiums paid for coverage
23 beyond the date of cancellation of the policy.
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1 ~~D.~~ G. An insurer canceling a policy under subsection ~~E~~ F of
2 this section shall not be liable for claims arising after the date
3 of cancellation.

4 H. An insurer may only consider the applicant's at-fault motor
5 vehicle claims history during the preceding three (3) years when
6 rating a homeowner's insurance policy or any other personal
7 residential insurance coverage.

8 SECTION 2. This act shall become effective November 1, 2026.

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10 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
11 OVERSIGHT, dated 03/03/2026 - DO PASS.